

**STATE OF VERMONT  
SECRETARY OF STATE  
OFFICE OF PROFESSIONAL REGULATION  
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE: )  
MARK G. KOCH ) Docket No. 2010-468  
License No. 100.0000053 )

**STIPULATION AND CONSENT ORDER**

**STIPULATION**

NOW COME the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Mark G. Koch, who stipulate and agree as follows:

**Board Authority**

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by licensed marriage and family therapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

**Stipulated Facts**

2. Mark G. Koch (the "Respondent") of Hartland, Vermont is licensed by the State of Vermont as a Licensed Marriage and Family Therapist under license number 100.0000053. This license was originally issued on or about September 20, 2007 and expires on or about November 30, 2012.
3. At all times relevant, Respondent worked out of his office in Springfield, Vermont.
4. On or about July 23, 2010, Respondent had an initial appointment with patient W.W. At that appointment the following was disclosed to W.W:
  - a. Respondent told W.W. that he had kicked a dog who was fighting with Respondent's dog and stated that he learned that the dog had been killed as a result of the Respondent kicking him;
  - b. Respondent told W.W. that he had been served a summons on the morning of July 23, 2010 for cruelty to animals as a result of his conduct;

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- c. Respondent asked W.W. to read a letter that he written to the family of the dog that he had killed;
5. Since this incident, Respondent has completed a six (6) hour workshop in Ethics.

### **Violations**

6. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of:
- a. The State incorporates paragraphs 2, 3, and 4, 3 V.S.A. § 129a(a)(15) (Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession);
  - b. The State incorporates paragraphs 2, 3, and 4, 3 V.S.A. § 129a(b)(1) and (2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care; or (2) failure to conform to the essential standards of acceptable and prevailing practice); and
  - c. The State incorporates paragraphs 2, 3, and 4, and 10, 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

### **Understandings**

7. Respondent admits that the facts above are true and that the conditions below are necessary to protect the public.
8. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
9. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced his rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
10. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

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11. Respondent is not under the influence of any drugs or alcohol at the time he signs this Stipulation and Consent Order.
12. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
13. Respondent voluntarily waives his right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
14. Respondent agrees that the Order set forth below may be entered by the Board.

### ORDER

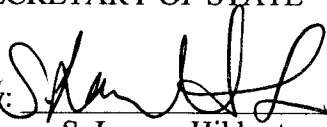
Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **WARNS** the Respondent's license.
- B. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT  
SECRETARY OF STATE

Dated: 4/29/13

By: 

S. Lauren Hibbert  
State Prosecuting Attorney

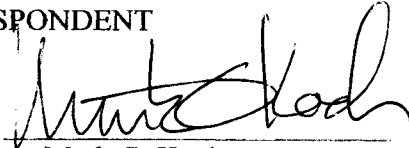
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Dated: 4/24/13

MARK G. KOCH  
RESPONDENT

By: 

Mark G. Koch

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED  
MENTAL HEALTH  
PRACTITIONERS

Dated: 5/16/13

Date of Entry: 5/16/13

By: Marilyn Thucot  
Chairperson

amh.koch.stp

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